

**NETT CONFIDENTIAL WHOLESALERS AGREEMENT**

01 November 2022 - 31 October 2023

This nett confidential wholesalers agreement is issued subject to terms and conditions stipulated

From: Chen Sea Resort & Spa Phu Quoc Contact: Vo Thi Hoang Anh - DOSM Address: Bai Xep, Ong Lang, Cua Duong Phu Quoc, Kien Giang Vietnam 920000 Reservation: 84 (0) 297 399 5895 Res.E-mail: rsvn@chensea-resort.com S&M Email: dosm@chensea-resort.com	To: 365 TRAVEL AND INVESTMENT COMPANY LIMITED Contact: Ms. Hoang Thi Mai Huong Title: Contracting Director Address: Room 108, G2, KTT Thanh Cong, Thanh Cong Ward, Ba Dinh District, Hanoi Telephone: +84 3835 4899 E-mail: holy.hoang@365travel.asia Tax code: 0102126682
Currency of Contract: Vietnamese Dong (VND) Account Name CHEN SEA RESORT Account Number 0091000407757 (FOR VND) Bank: Vietcombank Kien Giang Branch Swift code: BFTVVNVX009	Bank's Detail CHEN SEA RESORT A/C Number: 0071373711587 (FOR USD) Bank's Name: VIETCOMBANK HCM Bank's Address 10 Vo Van Kiet, Dist.1, HCMC Swift Code: BFTVVNVX
Payment Term Full prepayment required unless credit facility is established with the property	

Please complete below contact details for hotel reference

Contracting Department - person in charge of contract	Name: Email:
Product Department - person in charge of hotel product	Name: Email:
Accounting Department - person in charge of account	Name: Email:

TERMS OF USE

Please duly sign for the acknowledgement and acceptance of this agreement or contract. An authorized signed copy of this agreement must be returned within 14 days to validate the agreement and become effective. An effective date refers to date signed and recorded in writing. Unless otherwise this agreement will automatically be null, void and cancelled without prior notice. By signing this document, the company shall be binding upon and insure to the benefit of the parties hereto, their legal representatives, successors and assigns.

Resort reserves the right to reject, deny and or propose rate, availability and or booking confirmation to any booking request at any given time prior to authorized signed copy of this agreement is returned to the resort. An authorized signed copy refers to authorized signature along with company stamp and signing date on the agreement.

This agreement must be executed by two counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same agreement. The counterparts of this agreement may be executed and delivered by email or any other electronic signature or means by resort to agent or vice versa. The receiving party relies on the receipt of such document so executed and delivered by other electronic means as if the original had been received. Agent hereby agrees to waive any rights to challenge the validity or enforceability of this agreement on the grounds that the agreement created by acceptance of this document was made electronically or is not an original signed copy.

Each party shall hold in confidence and refrain from divulging and cause its employees to hold in confidence and refrain from disclosing any Confidential Information, which it or its employees and agent may acquire during the course of working together, to any third party or customer. "Confidential Information" means all business, financial or Intellectual Property and related information about disclosing party which comes to be known during the term of this Terms of Use and related services. Signed document must be submitted to email address: dosm@chensea-resort.com

Chen Sea is fully committed to eco-friendly practice, we embrace long term sustainability, recyclability and plastic free.

Contract issue date	7/15/2022
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Bai Xep, Ong Lang, Cua Duong, Kien Giang, Phu Quoc, Vietnam

Tel : 84 (0) 297 3 995895 Fax : 84 (0) 297 3 995896 E: info@chensea-resort.com, www.chensea-resort.com



NETT CONFIDENTIAL RATE AGREEMENT

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Worldwide Markets

Seasons	Period		Room rate			
			Sea View Villa	Beach front Villa	Jacuzzi Villa	Two-Bedroom Villa
	From	To	3A or 2A1C or 1A2C (max 3 persons)	3A or 2A1C or 1A2C (max 3 persons)	3A or 2A1C or 1A2C (max 3 persons)	5A or 4A1C or 3A2C or 2A3C (max 5 persons)
			12 units	12 units	6 units	6 units
Peak Season	20 Dec 22	07 Jan 23	8,990,000	12,580,000	15,280,000	21,570,000
	20 Jan 23	28 Jan 23				
High Season	01 Nov 22	19 Dec 22	6,870,000	9,620,000	11,690,000	16,500,000
	08 Jan 23	19 Jan 23				
	29 Jan 23	31 Mar 23				
	28 Apr 23	01 May 23				
	01 Sep 23	03 Sep 23				
Low Season	01 April 23	27 Apr 23	4,230,000	5,920,000	7,190,000	10,150,000
	02 May 23	31 Aug 23				
	04 Sep 23	31 Oct 23				

Rates are net inclusive of 5% Service Charge and Value Added Tax in Vietnamese Dong.

Rates are valid for one (1) person or two (2) persons except max 4 persons in Two-Bedroom Villa.

Extra bed for adult: VND 1,400,000nett per bed per night.

Extra bed for children (6 – 11.99 years old): VND 700,000nett per bed per night.

Rates are inclusive of daily buffet breakfast at the restaurant (Room and Extra Bed).

Early Bird Offer

(Non-Combinable with other offers)

Applicable to all room types for all seasonalities such as low season, shoulder season, high season except peak season.

Book 60 days in advance before arrival date and receive 10% off of room rate, valid for high season and shoulder season..

Book 30 days in advance before arrival date and receive 10% off of room rate, valid for low season only.

Early Bird Offer is applicable on extra bed.

Minimum Night Offer

(Non-Combinable with other offers)

Applicable to all room types for all seasonalities low, shoulder, high except peak season

High Season and Shoulder Season: Book a minimum of 5 consecutive nights stay, receive 10% off of room rates

Low Season: Book a minimum of 3 consecutive nights stay, receive 10% off of room rates.

Minimum Night Offer is applicable on extra bed.

Meal Type (Per person)	Adult	Child	Transport (Per person)	Adult	Child
Buffet Breakfast	564,000	282,000	R/T Join Transfer	300,000	150,000
Set menu Lunch	470,000	235,000	R/T Private Transfer	TBA	TBA
Set Dinner	705,000	353,000			
Full Board (lunch & dinner)	1,058,000	529,000			
Optional Christmas (24 Dec)	1,500,000	750,000	Activity (Per person)	Adult	Child
Optional New Year Dinner (31 Dec)	2,500,000	1,250,000			
Romantic Dinner (per couple)	3,500,000		Cooking Class	2,500,000	

50% discount for all meal rates applicable for child age under 12 years old (06-11.99 Year).

All meals are exclusive of beverages.

Lunch and dinner are based on 3 courses meal.

Lunch, dinner and full board meal rate is not applicable during peak season.

Romantic dinner is available for adult only.



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Benefit & Extra Services

Services and Benefits Inclusion in room rate

Complimentary daily buffet breakfast served at the restaurant during 07:00 - 10:00 hrs.
Complimentary welcome drink, fresh fruit skewer and cold towel upon arrival.
Complimentary unlimited purified water provided throughout the entire stay.
Complimentary tea & coffee making facility including espresso machine & biodegradable coffee capsule.
Complimentary in-room WiFi and throughout the entire resort.
Complimentary daily turndown services with goodnight fairy tales and chocolate treats.
Complimentary healing slippers, luxury cinnamon bath salt and spa bath amenities.
Complimentary departure thank you gift for long stay guests.
Complimentary pool service including fruit skewer, bottle of water, eye cucumber (weather permits).
Complimentary usage of sport activities include Fitness Pavilion, Bicycle, Beach Volleyball (07:00 -17:00 Hrs).
Complimentary usage of non-motorized water sport activities include Transparent Kayak, Night & Day Kayak, Snorkeling, Windsurf, Hobie cat, Catamaran (Not Available during Monsoon Season between May to October).

Honeymoon and Wedding Anniversary - Subject to applicable documents

Available for all room categories and applicable year round.
Complimentary welcome fruit, flower in villa upon arrival for guest who stay 01 or 2 consecutive nights.
Complimentary welcome fruit, flower and complimentary one bottle of wine in villa upon arrival for guest who stay minimum 3 consecutive nights.
Complimentary upgrade to next villa category subject to space availability at time of arrival.
Accommodation with king size bed guaranteed upon arrival including special turndown and villa decoration

Peak Season Requirement:

A minimum stay of 5 consecutive night is required for all reservation made during peak season between 20 December 2022 - 07 January 2023.
A minimum stay of 3 consecutive night is required for all reservation made during peak season between 20 January 2023 – 28 January 2023.
No departure allowed on the night of 30 December and 31 December (2 nights inclusive).
No arrival allowed on the night of 01 January (1 night inclusive).

Peak Season Booking Condition:

All booking reservation made during peak season are subject to full prepayment and non-refundable.
A full 100% prepayment is required 45 days prior to arrival for all agents.
All reserved booking reservation will be subject to automatic release should prepayment is not settled in time.
Booking confirmation is subject to resort's discretion only, without exception. Peak Season booking amendment is not permitted.
Shorten stay booking after confirmation, prior and or after guest arrival is not permitted, no refund for any shorten stay booking.
Booking confirmation during peak season is subject to confirmation in writing only along with prepayment. Resort reserves the right to cancel, modify, deny and or reject booking request or confirmed booking that does not follow the policy or breach the agreement.
Failure to comply with resort's policy and/or breach of wholesales contract agreement during peak season will result in automatic cancellation of wholesales contract agreement with immediate effect.



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Terms and Conditions

1. This is net confidential wholesalers agreement or herein contract. All rates contain are quoted and applicable to individual booking only. Rates are not applicable to any form of group bookings more than 10 paying guests at time of reservation for the same period of stay. Group booking defined as groups, series, incentive, corporate, meeting, trade delegation, convention and exhibition.
2. Rates are applicable for Worldwide market including all nationalities except unless otherwise specified.
3. Online promotion and sales for the "Resort" is only permitted through the "Tour Operator" and third party agents subcontracted by the tour operator after prior permission has been obtained from the resort. When permission for online sale and promotion is obtained to be applied to contracted rates a minimum mark up of 25% must be applied to contracted rates at all times. It is the responsibility of the tour operator to ensure that third parties agents are aware of and comply with this policy. In the event that a rate is seen to be promoted or a reservation(s) is made through an online channel without a 25% mark up this will be regarded as breach of contract and the resort reserves the right to cancel the reservation(s) in question and withdraw the contract from the tour operator.
Our operators shall not purchase placement rights for resort service marks or trademarks for any manner of advertising, including but not limited to internet and web advertising, without express written consent of the resort.
4. Rates must be packaged and are extended on the understanding that the resort will be featured in promotional brochures both pictorially and editorially. Any default in any clause of this agreement shall result in immediate termination of this agreement. The resort reserves the right to cancel this agreement or review the terms of this contract, should your company's production be less than 60 room nights after 12 months has passed from the commenced date of the agreement. The resort reserves the right at any time by giving notice in writing to cancel this agreement should the company fail to fulfill these terms and conditions.
5. All reservations are subject to confirmation in writing within 72 hours after receiving booking on request or after automatic confirmation from granted allocation. Resort reserves full right to deny on request booking or alternatively at its discretion to offer suitable accommodation based on commissionable Best Available Rate at time of reservation. Dispute over rate compliance issue are determined solely at the discretion of sales & marketing department without exception.
6. Tax Fluctuations: should the Vietnamese Government either increase or decrease the percentage of tax collected on room and/or meal rates or imposes additional taxes and levies, the resort reserves the right to adjust the contract rates accordingly with immediate notice.
7. Force majeure and disputes: By signing of the agreement, the resort shall not be held liable or responsible for failure to execute arrangement specified herein directly or indirectly occurred by or through or in consequence of war, strikes, riots and Acts of God or conditions beyond the control of the resort. It is expressly agreed and declared that the proper law of the agreement is the Law of Vietnam and that any disputes, action or other matters arising there under shall be determined in a court of Law in Vietnam in accordance with the laws and procedures of Vietnam and under any and all circumstances.
8. Payment: Prepaid by bank transfer to the below bank information. All payments must be in full and any bank fees or transfer costs are the tour operator's responsibility. All deposit related to room blockage held at time of payment are subject to the times stipulated under the cancellation clause. In the event of payment default on the stipulated prepayment schedule, the resort reserves the right to cancel all rooms. Only full pre-payment will guarantee the reservation unless otherwise credit facility has been pre-established.
9. All FIT reservations are on a space available request basis and to be made directly with the Reservation Department. Check-in time is 14:00 hours and check out time is 12:00 hours on the day of departure.
 - Early check-in or late checkout is subject to availability on the day of check-in/check out and the following charge may apply.
 - Check-out after 14:00 prior to 18:00 hour – 50% of room rates and thereafter a full nightly charge.
 - An overnight rate will be charged to fully guarantee check-in before 14:00 hours.
10. The resort reserves the right at any time by giving notice in writing to cancel this agreement without reason should the tour operator or his subcontracted including but not limited to his affiliate or client fail to fulfill all terms and conditions. All terms and conditions stipulated in this agreement are considered an integral part of our contract and require your acceptance in conjunction with signing rate agreement.
11. Cancellations and Non-Arrival Policy: In case of cancellation, a written notice must be received in writing in time prior to arrival date or prior to given specific period as stipulated here under. In the event that such written notice fails to arrive



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or to be received by the resort for whatever so reason following charges applied without exception. Policy is also applicable to the event of non-arrival guest without prior notice. Resort reserves full right at its full discretion to determine applicable charge or waiver subject to legal documents provided:

- Low Season = 07 days subject to 100% charge or all night (s) booked
- High Season = 30 days subject to 100% charge or all night (s) booked
- Peak Season = 45 days subject to 100% charge or all night (s) booked

12. Terms of payment is based on full prepayment prior to guest arrival date and applicable to non-credit agent. Payment to be made before:

- Low Season = 07 days
- High Season = 30 days
- Peak Season = 45 days

Resort reserves full right at its discretion to determine different terms of payment in any high demand date, day or period throughout this agreement regardless of above pre-determined terms of payment for any reservation made on request basis.

13. Terms of payment, Cancellation Policy and Allotment Release Date for each specific seasonality specified as date range within this agreement are aligned, corresponded and abide together as part of integral conditions unless otherwise specified separately in each individual booking confirmation.

14. Amendment: Booking amendment including shorten stay, extend stay, decrease or increase the number of corresponding room blocked as well as change of guest name prior to guest arrival during low and high season can be permitted at resort's discretion and must be confirmed in writing only. Booking amendment and guest name change are not permitted during peak season regardless of any circumstance.

For and on behalf of	For and on behalf of
On behalf of Property Chen Sea Resort & Spa Phu Quoc Vietnam Authorized Signature	Confirmed and accepted by Authorized Signature & Company Stamp
Name: Mr. Livio Ranza	Name: Ms. Hoang Thi Mai Huong
Position: General Manager	Position: Contracting Director
Date: 7/15/2022 (GMT)	Date:



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Terms and Conditions Extension - Privacy Policy & General Data Protection Regulation	
1. Unless otherwise stated in the primary agreement entered into between the parties, either party can terminate this agreement subject to thirty (30) days written notice of termination regardless of cause. In the event of a material breach, the non-breaching party shall notify the breaching party who will have seven (7) days to rectify said breach, if it fails to do so, the non-breaching party may terminate these Terms and Use and the parties will cease to work together. 2. The parties shall maintain confidentiality all information even after termination. 3. Any provision of these Terms and Conditions which impose an obligation after termination or expiration of the Terms of Use shall survive the termination or expiration of these Terms of Use. 4. Each party shall hold in confidence and refrain from divulging and cause its employees to hold in confidence and refrain from disclosing any Confidential Information, which it or its employees, agents and subcontractors may acquire during the course of working together, to any third party or Customer. "Confidential Information" means all business, financial or Intellectual Property and related information about disclosing party which comes to be known during the term of this Terms of Use and related services. 5. These Terms and Conditions may be executed in two or more counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same Terms and Conditions. The counterparts of these Terms and Conditions may be executed and delivered by facsimile, email or any other electronic signature or means by both parties. The receiving party may rely on the receipt of such document so executed and delivered by facsimile or other electronic means as if the original had been received. 6. These Terms and Conditions have been confirmed, and shall be construed, in the English language. Any translation of the Terms and Conditions prepared by either party is for convenience only. If there is any contradiction between the English language version and any such translation, then the English language version shall prevail. 7. Tour Operator agrees to comply with Resort's General Terms and Conditions, Privacy Policy, any legal agreement executed between resort and tour operator and any applicable local, national and international law that relates to resort's services including EU GDPR 2016/679 Regulation (EU) 2016/679 on the protection of natural persons. In the event of a conflict between the provisions, the most stringent conditions shall take order of precedence. 8. Resort is fully compliant with EU General Data Protection Regulation 2016/679 of the European Parliament and of the Council ("GDPR") as well as any local data protection laws. 9. The Tour Operator undertakes to use resort's Trade Marks in conformity with the quality standards. The Tour Operator recognizes that resort is the exclusive owner of all the rights, titles and interests in and to the resort's Trade Marks and agrees that the property of resort's Trade Marks and related goodwill shall remain vested in the resort, both during the term of this Agreement and thereafter. 10. Tour Operator shall not be deemed to have waived any of the terms, conditions or provisions of these Terms and of the primary Agreement unless same shall be in writing, and no such waiver shall constitute a waiver of any subsequent occurrence of the same or similar act or omission, or of any other act or omission which may constitute a breach of these Terms.	
For and on behalf of	For and on behalf of
On behalf of Property Chen Sea Resort & Spa Phu Quoc Vietnam Authorized Signature	Confirmed and accepted by Authorized Signature & Company Stamp
Name: Mr. Livio Ranza Position: General Manager Date: 7/15/2022(GMT)	Name: Ms. Hoang Thi Mai Huong Position: Contracting Director Date: